



3 ways to pass your home down to your children

【将房产传给子女的三种方式】

Summary: This video discusses three methods to transfer your home to your children—gifting, selling, or inheritance—and their tax implications, with insights from tax strategist Jerry Doyle.

摘要： 本视频探讨了将房产传给子女的三种方式（赠与、出售或继承）及其税务影响，并邀请了税务策略师Jerry Doyle分享见解。



雅思生词

- actually adv.实际上, 事实上
 - adequate adj.适当的, 足够的
 - appreciate v.赏识, 感激
 - equal adj.相等的, 均等的
 - estate n.不动产, 阶层, 财产
 - event n.事件, 事变, 活动, 竞赛
 - gain n.& v.增加, 增进, 获得
 - issue n. 发行,问题; v.发行
 - necessarily adv.必要地
 - option n.选项, 选择权
 - order n.次序, 命令, 订单; v.命令
 - recommend v.推荐, 介绍, 劝告
 - result n.结果; v.由于, 导致
 - status n.身份, 地位, 状况
 - transfer n.&v. 运输
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Well, when it comes to estate planning, your home is often one of the biggest assets, and how you pass it down matters.

在遗产规划中，房产通常是最大的资产之一，如何传承至关重要。

We want to look at three ways that you can plan to pass your home down.

我们将探讨三种将房产传给子女的方式。

One, you can gift it to your kids while you're alive.

第一，您可以在生前将房产赠与子女。

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Two, you can sell the home to your kids while you're alive.

第二，您可以在生前将房产出售给子女。

And three, you can have your child inherit the home after you pass away.

第三，您可以让子女在您去世后继承房产。

And here to discuss the tax implications of all of the options, we've got Jerry Doyle, BNY wealth tax and estate planning strategist.

BNY财富税务与遗产规划策略师Jerry Doyle将分析这些选项的税务影响。

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Jerry, good to have you here with us.

Jerry, 感谢您的到来。

So, let's start with being gifted the home.

我们先从房产赠与开始。

What are the implications there?

这有哪些影响？

Well, the gifting the home, you may have an issue because a lot of the uh real estate has appreciated substantially.

赠与房产可能存在一个问题，因为许多房产已大幅增值。

So, if a parent gifts a house to a child, there's going to be a gift, a taxable gift for gift tax purposes.

如果父母将房产赠与子女，这属于应税赠与，需缴纳赠与税。

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And unless they're super wealthy, the parents are super wealthy, they're going to have adequate exemption in order to offset that gift, and they won't actually have to pay any gift tax.

除非父母非常富有，否则他们有足够的免税额来抵消赠与，无需实际缴税。

But the downside for the child is that the child will take the parents cost basis in the house and a lot of parents have you know they purchased their house when the market value was

way down or when the uh they paid u just a little bit of money for the house and it's appreciated substantially.

但对子女不利的是，他们将继承父母的房产成本价，而许多父母购房时市场价较低或支付金额很少，如今房产已大幅增值。

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So what would happen is if mom and dad gave the gift uh made a gift of the house to the child the child would take mom and dad's cost basis.

因此，如果父母将房产赠与子女，子女将按父母的成本价计税。

So they not only get the house but they get the embedded gain in the house as well.

他们不仅获得房产，还继承了房产的潜在增值部分。

How about selling the home to your family, your your child?

将房产出售给子女呢？

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Well, obviously the sale would be a taxable event.

显然，出售属于应税行为。

The there would be a \$250 to \$500,000 exclusion depending upon filing status.

根据申报状态，可享受25万至50万美元的免税额。

And I'm assuming you're transferring a primary residence as opposed to vacation home.

这里假设您转让的是主要居所而非度假屋。

If it were a vacation home, uh, not your primary residence, the whole gain's going to be taxable.

如果是度假屋（非主要居所），全部增值都需缴税。

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So, mom and dad are going to have to pay tax on that gain when it goes over to the child.

因此，父母将房产转让给子女时需为增值部分缴税。

Now, in a lot of cases, what parents may do is they may say, "Okay, what we'll do is we'll give you a sweetheart deal.

许多父母可能会提供优惠交易。

Uh, let's say the house is worth \$700,000.

假设房产价值70万美元。

Mom and dad agree to sell it to the child for \$500,000.

父母同意以50万美元出售给子女。

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Well, now you've got a part sale, part gift."

这就构成部分出售、部分赠与。

And what would happen would be uh they'd have a gift, in my example, of \$200,000.

按此例，20万美元差额属于赠与。

the difference between the \$700,000 fair market value and the \$500,000 they're selling the child for.

即70万市场价与50万售价的差额。

And then also have to pay tax on that gain, the difference between the \$500,000 proceeds that the child is going to pay for the house and whatever the parents cost basis is in the house.

同时还需为增值部分（子女支付的50万与父母成本价的差额）缴税。

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Now, what about inheriting a home or real estate after your parents pass?

父母去世后继承房产呢？

Inheriting the house is probably the most taxefficient way as long as the child can wait.

只要子女能等待，继承可能是最节税的方式。

Uh so if a parent dies and they transfer the house after death to the child, the house will the cost basis of the house will be stepped up to the fair market value as a date of death.

父母去世后将房产转给子女时，房产成本价将按死亡时的市场价重置。

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So any embedded gain goes away.

因此所有潜在增值都会清零。

The parents don't have to pay any income tax on the sale of the house because it's inherited and the child gets the house without any income tax and they get a cost basis equal to the fair market value as a date of death.

父母无需为房产继承缴纳所得税，子女也无需缴税，且成本价按死亡时的市场价计算。

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So, as a result, if the child can wait, inheritance is probably the most taxefficient way to transfer a house to a child.

因此，只要子女能等待，继承可能是最节税的房产转让方式。

Earlier this week on the show, we talked about when to use a trust in your estate planning and you can pass your home by putting it in a trust.

本周早些时候我们讨论过何时在遗产规划中使用信托，您也可以通过信托转让房产。

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What are what are some of the tax implications there?

这有哪些税务影响？

And and is that something that you recommend?

您会推荐这种方式吗？

Uh, I would go for whatever is the simplest and I think just transferring it outright is the simplest.

我认为最简单的方式是直接转让。

If the child has some issues, like if they have creditor issues or there are some other issues, maybe there are multiple children involved, they're going to be owners of the house, maybe a trust works, but a trust necessarily isn't always the best option.

如果子女存在债权人问题或多子女共有房产等特殊情况，信托可能适用，但不一定总是最佳选择。

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Like I said, I like to make things as simple as possible, and unless there are other factors, I would transfer the house outright.

如我所言，我倾向于简化流程，除非有其他因素，否则会选择直接转让。

And so just lastly here as you're thinking about if you did inherit the home and then decide to sell the home later on, what are the tax implications there?

最后，如果您继承房产后又决定出售，税务影响如何？

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Well, what will happen is you will get your car your parents um when your parents die, whatever the value of the house is.

您继承房产时，其价值按父母去世时的市场价计算。

That's your cost basis for income tax purposes.

这是您所得税的成本价。

You turn around and sell it.

若您转售房产，

If there's any appreciation between the date of your parents' death and the date of your sale, you'd pay tax on that appreciation.

父母去世后至出售期间的增值部分需缴税。

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And if it's your primary residence, remember you get a \$250 or \$500,000 exclusion, gain exclusion, depending upon your filing status.

如果是主要居所，根据申报状态可享受25万或50万美元的增值免税额。

So some of the gain, you may not have to pay tax on any of the gain unless you're over that 500 or \$250,000 threshold.

除非超过50万或25万美元门槛，否则部分或全部增值可能无需缴税。

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Jerry, thanks so much for taking the time here with us.

Jerry，非常感谢您的分享。

Really appreciate it.

非常感谢。

Thank you.

谢谢。

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